

Supporting Record:

Operations Research Corpus, Competent Authority Determination

(2006–2026)

Annex to correspondence of July 14th, 2026 (Re: S-2025-0174-DEF)

Addressee: Ms Rose Conway-Walsh TD, Cathaoirleach, Joint Committee on Defence and National Security

This Annex sets out the full record supporting the cover letter of today's date: the background to the DFA's accumulated obligation, the JCFAT development and its institutional significance, the four defects identified in the February 2026 ministerial determination, the Ombudsman and dual-ministerial-capacity dimensions, the Presidency and Commission-evaluation context, the bilateral dimension, and the complete list of prior correspondence.

Background to the Competent Authority Record

The corpus that is the subject of this record was first submitted to Irish State institutions in 2006, initially to the Department of Defence, the Department of the Taoiseach, and directly to then-Taoiseach Bertie Ahern who gave a verbal commitment to resolve the matter on June 6th, 2006. Those submissions were made while Council Regulation (EC) No. 1334/2000 governed the European Union's dual-use control regime, and while the legislative proposal that would become Council Regulation (EC) No. 428/2009 (COM(2006) 829 final; Procedure 2006/0266/ACC) was already progressing through the Union's legislative process. The Union's dual-use framework was therefore in active legislative development when the corpus first entered the State system.

First contact with the Department of Foreign Affairs occurred on September 19th, 2008, through Minister Martin's Turner's Cross constituency office, followed by a formal written record on September 22nd, 2008. That email introduced the corpus explicitly in terms of its dual-use characteristics: its origins in wartime British and American mobilisation efforts, its paramilitary intelligence lineage, its copyright position, and its capacity to address executive-level requirements across all sectors. The dual-use dimension was therefore not a characterisation that emerged in subsequent regulatory engagement; it was stated, in writing, in the first document placed before the Minister's office.

The correspondence of September 22nd, 2008, requested ministerial consideration. The subsequent routing of the matter to the Irish Aid Emergency and Recovery Section, under Director Diarmuid O'Leary, represented a departure from that request: the corpus was directed to a departmental sub-unit rather than receiving the ministerial examination that had been sought. On February 5th, 2009, a technical presentation was delivered to Director O'Leary and a colleague in Limerick, following which Director O'Leary committed to producing a report on the submission—an undertaking subsequently echoed by Mr Aidan Cronin, Private Secretary to Minister Martin. To my knowledge, no such report was ever produced.

Meanwhile, Ireland's response to the evolving EU legislative architecture was to transfer the national competent authority designation to the Department of Foreign Affairs: a designation that the DFA held from the commencement of Regulation 428/2009 on August 27th, 2009, until August 22nd, 2024. The DFA's first encounter with the corpus therefore preceded its acquisition of the competent authority function by approximately one year. When Regulation 428/2009 commenced and the DFA became Ireland's designated authority, the unresolved corpus was already before the body now obliged to assess it.

On September 25th, 2009, Minister Martin gave a verbal commitment at my residence in Ballyphehane, Cork—in his capacity as both constituency TD and Minister for Foreign Affairs—to review the material and follow up on the dual-use goods matter. That commitment was not a discretionary ministerial undertaking: it was made by the Minister responsible for Ireland's designated competent authority, under a live statutory obligation, with the DoD's security assessment capacity already engaged and inactive for three years.

The Department of Foreign Affairs retained Ireland's competent authority designation from August 27th, 2009, until August 22nd, 2024, spanning the operation of both Regulation (EC) No. 428/2009 and its successor, Regulation (EU) 2021/821, which entered into force on September 9th, 2021.

When the competent authority designation transferred to the Department of Enterprise, Trade and Employment on August 22nd, 2024, under the Control of Exports Act 2023, no recorded audit of the unresolved competent authority record was identified, no statutory determination of the accumulated obligation was made prior to transfer, and no documented transfer of the unresolved record to the incoming competent authority has been identified. The corpus remained before Ireland's designated competent authority, unassessed, through both recasts and across the full period of the DFA's designation.

For completeness, the Office of Emergency Planning has never appeared among Ireland's notified competent authorities under either Regulation (EC) No. 428/2009 or Regulation (EU) 2021/821. Throughout the relevant period its function has been advisory to the Department of Defence. That advisory role is institutionally distinct from the statutory functions exercised by Ireland's notified competent authority under the Regulation.

Two points follow from this sequence that bear directly on the character of the accumulated obligation.

First, the Department of Defence—a necessary participant in any complete dual-use assessment, holding as it does the security evaluation capacity that Articles 12 and 14 of the Regulation require and that no other department can supply—had held the corpus since 2006, three years before the DFA acquired the CA designation. The institutional components required for an integrated dual-use assessment therefore already existed when the statutory obligation commenced.

Second, Minister Martin's commitment of September 25th, 2009, was made after Regulation 428/2009 had entered into force. By that date, the Department of Foreign Affairs was the designated competent authority and already fully-informed.

A. The JCFAT Decision and Its Institutional Significance

The Joint Committee on Foreign Affairs and Trade, which exercises parliamentary oversight of the Department of Foreign Affairs, resolved on July 7th, 2026 to demote the most recent correspondence concerning the Department's accumulated competent authority record pursuant to section 92 of the Houses of the Oireachtas (Inquiries, Privileges and Procedures) Act 2013, to conclude its engagement, and to identify no alternative parliamentary forum in which those matters would be examined.

Section 92 is a correspondence-management power; it is not a determination on the merits of what was submitted. Its invocation here is analytically significant in itself: the Committee used a workload-management tool to close engagement with a matter that directly engages its core constitutional oversight function: scrutiny of the expenditure, administration, and policy of the Department of Foreign Affairs. The five grounds demonstrating that the matter falls within JCFAT's remit were advanced in October 2025 and developed across three subsequent submissions. None was answered in any of the three prior declinations, nor by the section 92 demotion.

The structural explanation is this: the committee system is designed for sectoral scrutiny, and a matter that implicates the DFA's competent authority record, the DoD's advisory function, DETE's inherited designation, and the fragmented three-institution architecture simultaneously does not map onto any single committee's intake procedure. The most available procedural route, at each encounter, is the one that terminates engagement without requiring the committee to claim jurisdiction over the parts it does not directly oversee. That route has been taken, consistently, across eight committees and ten months.

The counterfactual is worth setting out. If JCFAT had engaged the five remit grounds advanced in October 2025 and found them insufficient, it would have said so and explained why. It did not. If it had concluded the matter fell within another committee's remit, it would have identified that committee. It did not. If the demotion reflected a considered view that the matters raised were frivolous or vexatious, the response would have said so. It did not. What remains, once those alternatives are excluded, is a procedurally valid closure that produces no determination and identifies no forum—consistent with the pattern the record has documented across twenty years.

This structural difficulty is also observable beyond the export-control context. The foreign affairs and national security implications of the competent authority architecture have been raised directly with the Minister for Foreign Affairs and with the Northern Ireland Office, including in the context of border management and wider all-island policy, without substantive response. The same issues were submitted to the Joint Committee on Justice, Home Affairs and Migration, whose remit encompasses border management and related security matters. The JCHAM noted and declined that correspondence (R2025 0106) on remit terms, declined three rebuttals (R2025 0200, R2025 0229, R2025 0221), and later stated that the material was considered at its meeting of March 24th,

2026, and noted (R2026 0068); no dialogue has occurred since.

Several other committees have followed a similar pattern: the Joint Committee on European Union Affairs, the Joint Committee on Finance, Public Expenditure, Public Service Reform and Digitalisation, and Taoiseach, and the Committee on Budgetary Oversight, among others. The cumulative effect extends across the parliamentary and executive structures that collectively bear responsibility for these interdependent questions. Some members of these committees were individually briefed on the same subject as far back as 2020, a detail brought to the JCDNS's attention on November 26th, 2025.

The full evidentiary record is publicly indexed at: dr-crunch.github.io/nullification-loops

I. The February 2026 Determination and Its Observable Defects

On February 4th, 2026, the Minister for Defence issued a ministerial determination under reference DOD-MO-01201-2025, purporting to close the file on the formally lodged Operations Research corpus submitted to Irish State institutions beginning May 2006. That determination relied exclusively on the adequacy conclusion of the Office of Emergency Planning, issued June 1st, 2025, as its dispositive authority.

Four conditions observable within the Department of Defence's own record are placed before the Committee.

First — the OEP's advisory status. The OEP is a Secretariat function within the Department of Defence, an advisory body that has never held a designated competent authority function under EU Regulation 2021/821. Article 2(1) of that Regulation requires each Member State to designate one or more competent authorities empowered to apply its provisions. The Department of Foreign Affairs held that designation from 2009 until August 22nd, 2024; the Department of Defence held no part of it at any point. A determination resting on conclusions issued by a non-competent advisory function does not discharge the obligation of a designated competent authority. The February 2026 determination closed the DoD's own file; it did not and could not close the DFA's accumulated obligation.

Second — internal incoherence against the Storm Éowyn record. On January 24th, 2025, five months before the OEP issued its adequacy conclusion, Storm Éowyn made landfall, and the OEP was operationally overwhelmed by that emergency. The submitted corpus addresses precisely the class of large-scale logistics and resource-allocation problem that Storm Éowyn posed. The OEP's adequacy conclusion of June 1st, 2025 makes no reference to the operational record of January 24th, 2025 — an incoherence that constitutes an irrationality ground under *O'Keeffe v An Bord Pleanála* [1993] 1 IR 39, observable on the face of the public record without reference to any contested fact.

Third — the unanswered rebuttal. A formal rebuttal of the OEP adequacy conclusion was submitted on June 3rd, 2025 and not acknowledged. On February 5th, 2026, the day immediately following the determination, a 34-page technical submission entitled *Comprehensive Survey of Operations Research Sub-Domains and Their Theoretical Foundations* was transmitted under the same correspondence reference, rebutting the adequacy conclusion on its own grounds. Andrew Beltran, Private Secretary to the Minister for Defence, acknowledged receipt the same day; no substantive response has followed. The duty to handle formally submitted material bearing on national security with appropriate care is not discharged by acknowledgement alone. Under *Meadows v Minister for Justice* [2010] 2 IR 701, the absence of reasons for an administrative decision engaging rights and legitimate expectations is independently reviewable.

Fourth — the OEP's 2009 position. The OEP held a formal position in July 2009, documented in correspondence under the name of Mr Kelliher, on the corpus and its institutional relevance. The June 2025 adequacy conclusion was issued by the same body sixteen years later. If those two positions are mutually exclusive, the February 2026 determination relied on the more recent without addressing the earlier — a fourth, independent irrationality ground. Whether the OEP's 2009 and 2025 positions are consistent is a question the Committee is positioned to put to the Department directly.

The February 2026 determination is the primary certiorari target in High Court proceedings in preparation under Order 84 RSC.

Parliamentary Question (to Minister for Defence): Whether the ministerial determination of February 4th, 2026 (ref. DOD-MO-01201-2025) was intended to discharge the accumulated competent authority obligation of the Department of Foreign Affairs under EU Regulation 2021/821, or was confined to the Department of Defence's own file; and if the former, the statutory basis on which the Department of Defence held authority to close an

obligation it never held.

II. The Secretary General's Response of June 12th, 2026

On March 30th, 2026, formal notice was given to Secretary General Ms Jacqui McCrum that Ombudsman complaint OMB-260331-CSD014 had been lodged, naming the Department of Defence as secondary respondent. A specific question was placed on the departmental record at Secretary General level: whether the Department holds any internal record relating to the corpus submitted beginning November 2006, and in particular any record of the written commitment made by Director O'Leary and Mr Aidan Cronin of the DFA in February 2009 to produce a ministerial report on that corpus.

On June 12th, 2026, Private Secretary Sharon Duggan responded on Secretary General McCrum's behalf, confirming receipt of the question, that the Department had not yet received formal notification from the Office of the Ombudsman, and that it is not in a position to address the substance until it does.

Three points follow. The Department acknowledged the question without denying that relevant records exist. Its engagement is conditioned on an Ombudsman notification not yet issued, so the June 12th response is presently the ceiling of engagement between the formal complaint and the Department. The Committee's oversight function is independent of that pathway: no Ombudsman notification is required for the Committee to put the question to the Department on its own authority.

III. The Dual Ministerial Capacity

On November 18th, 2025, Minister McEntee was appointed Minister for Foreign Affairs and Trade while retaining the Defence portfolio, and held both portfolios when the February 4th, 2026 determination issued. Formal correspondence was transmitted to Minister McEntee in that dual capacity on June 24th, 2026, placing four specific questions on the departmental record of both departments.

The DoD's engagement with this record runs on a track parallel to the competent authority designation itself, grounded in the OEP correspondence of 2009 and 2025, the historically dual ministerial convention linking DFA and Defence now restored in the McEntee appointment, and the operational intersection of foreign affairs jurisdiction with defence procurement and emergency planning. No single department currently considers itself responsible for the integrated assessment that Articles 12 and 14 of Regulation 2021/821 require.

The McEntee correspondence of June 24th, 2026 is publicly indexed at:

<https://drive.google.com/file/d/1rSA45SL-wagmB7f0wkW91W4cXxI6Vr2f>

An integrated dual-use assessment requires inputs that no single department holds: licensing authority (DETE), regime membership and international coordination (DFA), and security assessment capacity (DoD): each held exclusively by one body, each without value unless the others act simultaneously. The coordination cost of assembling those components, absent any statutory mechanism requiring it, is prohibitive: no department bears sufficient individual cost from the non-determination to make coordination rational within its own institutional function, while the collective cost is diffuse and structurally invisible to any single node. The result is a governance equilibrium in which each actor behaves correctly within its own remit and the obligation goes unmet: one that will likely persist until a mechanism external to the three departments, whether statutory, judicial, or parliamentary, imposes the coordination the architecture does not otherwise supply.

For completeness: the topic of technology transfer was first raised while then-Tánaiste Martin held simultaneous ministerial responsibility for both the DFA and the Department of Defence. No coordinating action was taken to audit or discharge the accumulated obligation at that point, despite documented requests; that association is on the formal record, though the causal role it implies remains a matter for further determination.

The Commission's January 2024 White Paper on Export Controls identified the absence of coordinated oversight as a primary EU-wide compliance failure. Ireland's post-transfer architecture reflects that same gap at the moment Ireland chairs the Council formations governing the instrument in which it sits.

Parliamentary Question (to Minister for Enterprise, Trade and Employment): Whether, at the point of the transfer of the competent authority designation under the Control of Exports Act 2023 on August 22nd, 2024, the Department of Enterprise, Trade and Employment was formally notified of any unresolved submissions held by the Department of Foreign Affairs under EU Regulation 2021/821; and if not, what steps, if any, DETE has taken

to audit the pre-transfer record.

IV. The Presidency Dimension and the Commission Evaluation

Ireland assumed the EU Council Presidency on July 1st, 2026. The Commission's mandatory evaluation of Regulation 2021/821 opens no later than September 10th, 2026, within the Presidency term. The compliance record —twenty years without a statutory determination on a formally submitted dual-use corpus, a structurally defective foreclosure, and a fragmented competent authority architecture— will enter that evaluation as an institutional fact, not subject to domestic procedural filtering.

The Department of Defence's role in that architecture, and the OEP's position as the body whose adequacy conclusion was relied upon to close the submission, will be visible to the Commission's evaluators on the face of the record. The Committee's oversight function is the domestic parliamentary mechanism from which those conditions are most directly addressable before the evaluation commences.

V. The Advisory Landscape and the Bilateral Dimension

The JCDNS will be aware of the Irish Defence and Security Association and its documented interactions with the Department of Defence, including the quarterly meetings established from late 2024. IDSA co-founder Professor Ben Tonra of UCD was approached directly in March 2025 regarding the governance and institutional accountability dimensions of this dossier and Ireland's strategic positioning within the EU on dual-use questions; no response was received.

The corpus submitted to Irish State institutions beginning May 2006 was developed independently and presented through formal channels over twenty years. As far as I am aware, IDSA does not hold equivalent analytical resources in the domain the DFA/DoD dual-use conflux requires, and its engagement with the Department of Defence does not address the class of problem (emergency logistics, strategic resource allocation, national preparedness, dual-use evaluation) that the submitted corpus was designed to resolve. The JCDNS is best placed to assess whether the advisory relationships the Department has cultivated are adequate to the analytical obligations the Regulation imposes.

The bilateral dimension. The French Direction Générale des Relations Internationales et de la Stratégie (DGRIS), the strategic affairs directorate of the French Ministry of Armed Forces, holds an institutional record on this dossier dating to 2007, when its predecessor body, the Délégation aux Affaires Stratégiques (DAS), formally engaged the dual-use and strategic dimensions of the submitted corpus under the direction of M. Jean de Ponton d'Amécourt, continuing under M. Michel Miraillet from 2009 to 2011. A formal re-engagement was filed with DGRIS on February 26th, 2026, under Ministry dossier reference n° 29617506, invoking administrative continuity from those prior engagements.

France is Ireland's named bilateral defence partner for the Armoured Cavalry Programme. Initial French institutional engagement arose under the Ahern administration through the DAS in 2007. The question of bilateral interlocution on the dossier was raised again during the Cowen government, in the context of shared concern between the two nations regarding EU regulatory architecture, defence resilience, and national preparedness; and again subsequently, as the competent authority question developed through successive administrations. On each occasion, interlocution was not engaged as a possible avenue. It has not been foreclosed —no Irish institution has addressed it on the merits— and it remains a viable diplomatic option. France holds a continuous institutional record on this dossier, its successor body DGRIS has been formally re-engaged as recently as February 2026, and the bilateral defence relationship anchored in the Armoured Cavalry Programme provides a ready structural context.

The Committee may wish to consider whether the strategic assessment DGRIS conducted in 2007 —which no Irish institution has produced in the intervening eighteen years— is material to its oversight of the Department of Defence's analytical obligations, and whether that bilateral avenue warrants exploration before the Commission evaluation opens in September.

VI. What Is Asked

The Committee is asked to consider one or more of the following.

(a) Confirm in writing that this correspondence has been registered on the Committee's record as a continuation of S-2025-0174-DEF.

(b) Correspond formally with the Minister for Defence, asking: whether the Department holds any internal record (correspondence, minute, assessment, referral, or decision) relating to the Operations Research corpus submitted beginning November 2006, and in particular any record of the written commitment made by Director O'Leary and Mr Aidan Cronin of the DFA in February 2009 to produce a ministerial report on that corpus; and whether the determination of February 4th, 2026 was intended to discharge the DFA's accumulated competent authority obligation, or was confined to the DoD's own file.

(c) Request from the Department of Defence the internal record of the OEP's positions of July 2009 and June 2025 in respect of the submitted corpus, for the purpose of assessing their consistency and the basis on which the February 2026 determination relied exclusively on the later.

(d) Ask the Minister for Defence what coordination mechanism, if any, has been established between DETE, the DFA, and the Department of Defence to produce the integrated assessment Articles 12 and 14 of Regulation 2021/821 require, and within what timeframe. The Committee may wish to note that no such mechanism has been identified in any response received from any of the three departments to date, and that its absence is not incidental to the non-determination; it is its structural cause.

None of these requires the Committee to exercise powers beyond those it already holds.

One further matter is noted for context. The Committee of Public Accounts, at its meeting of April 23rd, 2026, considered a submission titled *The Governance Gap: Operations Research, Public Accountability, and the Case for a Government Analytical Service in Ireland* and directed correspondence to the Secretary General of a named department under PAC ref. S-2026-0307. That referral was directed to the Department of Culture, Communications and Sport. The submission's core question—the measurable cost to the Irish public of the systematic absence of Operations Research from public administration across health, transport, housing, revenue, social protection, and emergency planning—does not arise within that Department's remit. A clarification and request for supplementary referral was sent to PAC Clerk Paul Ng on May 29th, 2026, identifying the Department of Public Expenditure, National Development Plan Delivery and Reform as the correct destination. The clarification has not been acknowledged. Secretary General Declan Hughes of DETE is copied on the present correspondence in his capacity as head of the current competent authority designee, and because the PAC routing question and the competent authority transfer question converge on his department's obligations under Regulation 2021/821.

Closing Observations

The JCFAT decision of July 7th, 2026 does not simply conclude that Committee's engagement with this record; it changes the institutional context in which every other committee now encounters it. Each committee in this record has considered only the aspect immediately adjacent to its own sectoral remit. Viewed individually, each declination is procedurally defensible. Viewed collectively, no committee has assumed responsibility for the integrated administrative question that traverses those remits. This has formed an overt oversight deadlock in which each institution acts rationally within its own jurisdiction while the underlying obligation remains without parliamentary determination.

That observation is independent of the merits of the submissions themselves. Even if every substantive proposition advanced were ultimately rejected, the question would remain: where, within the Houses of the Oireachtas, is the integrated question under examination?

That question carries particular weight for this Committee. Defence, national security, emergency preparedness, strategic logistics, force deployment, operational planning, and resource optimisation are not merely fields in which Operations Research is applicable; they are the very same disciplines from which Operations Research itself emerged. For that reason, this Committee holds a vantage point unavailable elsewhere in the parliamentary system: it encounters not isolated questions of trade, expenditure, or regulation, but the operational consequences of their interaction. If the committee architecture has reached an equilibrium in which no individual committee considers itself responsible for the integrated question, this Committee is well placed to recognise that condition and, if it considers it appropriate, to address it.

Record References

S-2025-0174-DEF (September 2025, noted in JCDNS private session December 18th, 2025); JCFAT demotion under s.92, Houses of the Oireachtas (Inquiries, Privileges and Procedures) Act 2013 (July 7th, 2026, ref. S-2026-0018-FA&T); DOD-MO-01201-2025 (February 4th, 2026); OEP Adequacy Conclusion (June 1st, 2025); Rebuttal of OEP Conclusion (June 3rd, 2025, unacknowledged); Follow-up technical submission (February 5th, 2026, acknowledged, unengaged); Storm Éowyn operational record (January 24th, 2025); McCrum correspondence (March 30th, 2026); DoD response via Sharon Duggan, Private Secretary to the Secretary General (June 12th, 2026); McEntee correspondence (June 24th, 2026); Office of the Ombudsman submission OMB-260331-CSD014 (active); PAC ref. S-2026-0307 (routing clarification May 29th, 2026, unacknowledged); Control of Exports Act 2023 (commenced August 22nd, 2024); EU Regulation 2021/821, Articles 2(1), 12, 14, 26; Commission White Paper on Export Controls (January 2024); *La Direction Générale des Relations Internationales et de la Stratégie* (DGRIS), *Ministère de la Défense* (France) dossier n° 29617506 (February 26th, 2026); *O’Keeffe v An Bord Pleanála* [1993] 1 IR 39; *Meadows v Minister for Justice* [2010] 2 IR 701; further formal acknowledgements on the same underlying matter: DETE-MBURK-01636-2026; DOD-MO-00707-2025; DOD-MO-01206-2024; DFAT-THO-04011-2025; DFA-TMO-05256-2024; DOT-TM25-06516-2025; DOT-TM25-01179-2025; DOT-TH-11219-2024; DOT-TH-03856-2024.

Copies: Ms Jacqui McCrum, Secretary General, Department of Defence; Mr Declan Hughes, Secretary General, Department of Enterprise, Trade and Employment; Minister of State Thomas Byrne TD; Office of the Ombudsman (ref. OMB-260331-CSD014).